

26PR00257 Matter of Jim and Sandra Chase Trust

County: santa-barbara

Division: Trust

Department: 2 SM-Cook

Hearing date: 2026-06-30

Motion: Petition to Determine Claim to Property

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/26pr00257>

Source SHA-256: dd77896ac1517d4e3e8aee52fbaa8a4e322f4ff434f8de49619481ab6d56571b

Tentative Ruling: Matter of Jim and Sandra Chase Trust

Case Number

26PR00257

Case Type

Trust

Hearing Date / Time

Tue, 06/30/2026 - 09:00

Nature of Proceedings

Petition to Determine Claim to Property

Tentative Ruling

Probate Notes:

APPEARANCES REQUIRED so the Court may discuss the defects on the merits that may need to be corrected before the next hearing.

The following is noted for the Court at the hearing:

Defective Service. The Proof of Service of Notice of Hearing was filed on pleading paper, which does not contain the requisite information for a Probate Code section 850 Petition to Determine Claim to Property.

Service of Petitions pursuant to section 850 of the Probate Code is governed by section 851, which references CCP section 413.10:

At least 30 days prior to the day of the hearing, the petitioner shall cause notice of the hearing and a copy of the petition to be served in the manner provided in Chapter 4 (commencing with Section 413.10) of Title 5 of Part 2 of the Code of Civil Procedure on all of the following persons where applicable:

(1) The personal representative, conservator, guardian, or trustee as appropriate.

(2) Each person claiming an interest in, or having title to or possession of, the property.

(Prob. Code, § 851(a).) According to that chapter of the CCP, service of the petition must be on the person (CCP, §§413.10; 415.10) the same as a civil summons, with exceptions for mailing and publication as that law provides when the serving party proves the petition “cannot with reasonable diligence be personally delivered to the person to be served...” (CCP, §415.20(b).)

Further, section 851 requires Notices of Petitions pursuant to Probate Code section 850 “shall contain all of the following”:

(1) A description of the subject property sufficient to provide adequate notice to any party who may have an interest in the property. For real property, the notice shall state the street address or, if none, a description of the property’s location and assessor’s parcel number.

(2) If the petition seeks relief pursuant to Section 859, a description of the relief sought sufficient to provide adequate notice to the party against whom that relief is requested.

(3) A statement advising any person interested in the property that he or she may file a response to the petition.

(Prob. Code, § 851(c) [emphasis added].) To ensure this information is in the notice, the Judicial Council created form DE-115 to be used for all petitions pursuant to section 850.

Thus, the proof of service must be submitted using Form DE-115, which became mandatory on January 1, 2020.

The proof of service filed does not conform to the above requirements, thus has not satisfied due process.

Petition must be denied due to Judicial Admissions. The merits of the petition are governed by prior precedent that will require denial of the petition, for the following reasons:

Petitioner admits the subject trust was executed by Petitioner and her husband in November of 2000, and exhibit 3 to the petition reveals that the cash inheritance at issue became vested upon the death of Patricia Krause in August of 2022, because Petitioner’s husband post-deceased Patricia Krause in 2025. This makes the inheritance property at issue in this case “after-acquired” property, because it did not come into the possession of the Decedent until well after the 2000 execution of the subject trust, thus cannot be said to be held in trust without some affirmative act that placed the inheritance into the trust.

There is no case in California law that stands for the proposition that a general assignment clause can operate as a catch-all to after-acquired real property, even if the general assignment clause contains language attempting to entrust that property

when it is acquired in the future. Thus, no interest in property acquired after execution of a trust can be confirmed by our courts as trust property. In fact, there is substantial authority to the contrary.

First, Restatement (3rd) of Trusts (2003) §41 states: “An expectation or hope of receiving property in the future, or an interest that has not come into existence or has ceased to exist, cannot be held in trust.” Comment b to that section is persuasive:

Nonexistent interests. An interest may not be in existence because the thing that would be the subject matter of the interest is not itself in existence or, although the thing exists, no one has an interest in it. In these cases, no one has an interest in anything of which there could be a declaration of trust or a transfer to another in trust. A person can make a promise to create a trust of an interest in such a thing should it thereafter be acquired, but such an agreement is not binding unless the requirements of the law of contracts are satisfied.

Thus, according to the Restatement, no property acquired after the settlor executed the trust may be considered trust property, regardless of whether the settlor intended it to be, unless the settlor amends the trust to include the after-acquired property, or the settlor takes title to the after-acquired property as trustee of the subject trust.

Second, the cases of *Ukkestad v. RBS Asset Finance, Inc.* (2015) 235 Cal.App.4th 156, and *Carne v. Worthington* (2016) 246 Cal.App.4th 548, often cited for the proposition that after-acquired real property can be confirmed a trust asset, do not, in fact, stand for that proposition. The two parcels of real property in *Ukkestad* were titled in the name of the decedent in that case, as an individual, on the date of death (Id. at p. 160), and were infamously nowhere described in that opinion as having been acquired after the settlor (named Mabee) executed the trust. Further, the language comprising the general assignment clause in the trust did not include terms that could even remotely be considered to include prospective/after-acquired property:

“The Grantor [(i.e., Mabee)], by the execution of this instrument, hereby assigns, grants and conveys to the Trustees of this instrument all of the Grantor's right, title and interest in and to all of his real and personal property, including all Tangible Personal Property, stocks, bonds, cash, mutual funds and promissory notes, all amounts on deposit from time to time at any bank, savings and loan association or investment institution, real property, leases on real property, interests in business entities and all other property owned by the Grantor, wherever situated.... The Grantor intends this assignment to be effective as of the date of this instrument even though other documents may be necessary to perfect title to such property in the name of the Trustees.”

(Id. at p. 159 [emphasis added].)

The facts were no different in *Carne v. Worthington* (2016) 246 Cal.App.4th 548. In that case, the only distinction is that an after-executed trust was at issue, but the real property was concretely owned by the settlor at the time of execution of both trusts under consideration. (Id. at p. 552 [“In 2009, Liebler executed the 2009 Trust. As noted in part I., ante, among other provisions, the 2009 Trust expressly transfers the property listed in Schedule A to the trust, and lists the Via Regla Property in Schedule A.”].)

No other published case has addressed this issue, thus no published case supports the proposition that after-acquired property (even that titled in the name of settlor as an individual) can be affirmed a trust asset. In fact, there is no authority to even justify title taken in the name of the trust after execution of the trust, if language in the trust does not provide for additional property to be added in the future.

This outcome does not change because there exists a pour-over will. Assets that will eventually be ‘poured over’ into a trust cannot be transferred to that trust without the necessary probate process. (*Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 744. [“Accordingly, it would be premature for the court to distribute Ralph's personal estate at this time. (See *Estate of Hart* (1957) 151 Cal.App.2d 271, 280-281, 311 P.2d 605 [where title vests subject to the administration of the estate, the right to possession is deferred until the distribution of the estate and is contingent upon the will not being set aside by a contest after probate].) Thus, a party cannot “skip” probate, just because a pour-over will exists.

As a result of the above authority, the inheritance property in this case cannot be taken in the name of the trust, because it vested after the trust was executed. Therefore, the Court cannot hold that property to be trust res until it is distributed to the trust via the Probate process from the Decedent's estate.

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

312-C East Cook Street P.O. Box 5369

Santa Maria, CA 93456-5369

US